

BOSS Issue Statements

Issue Number 1: Substitute Pay when Substituting for Another Classification

Issue statement: What is the best way to provide fair compensation and recognition for stepping up when an MBU substitutes for a member in a classification that is paid a higher wage?

Issue Number 2: Step Placement when an MBU accepts a reassignment into a Classification with a Higher Pay

Issue statement: How can we ensure fair recognition of seniority/pay when an MBU changes classification within the district?

Issue Number 3: Salary for Veteran Employees Compared to New Hires

Issue statement: Due to step freezes in the past, MBUs who have been employed in the district make the same or very similar wages to new employees who are hired and given years for experience. How do we ensure longer term employees salary is recognized as such on the salary schedules?

Issue Number 4: Lack of Substitutes Creating Extra Work for MBUs in all Classifications.

Issue Statement: Across multiple classifications, the lack of substitutes is causing issues with MBUs being able to complete assigned duties well as Mus taking on extra work, sometimes without compensation. How can we proactively ensure that there are always available employees to step in to cover daily or extended vacancies or that MBUs who are assigned extra duties are fairly compensated?

Issue Number 5: Communication of Student Discipline Referral Results

Issue Statement: When MBUs submit discipline referrals to administrators there is a lack of communication/response as to the outcome of the steps taken as a result of the referral. Often times it appears that nothing was done, and the disruptive behavior continues. Often, students return to the classroom and/or bus with the attitude that nothing was done.

Issue Number 6: Professional Development

Issue statement: What is the best way to provide ongoing professional development to classified staff that is aligned to District's needs, state mandates, and to the role of each MBU? The current contract language is not prescriptive in terms of when professional development occurs, and/or in what amount of time it can occur.

Salary and Other Financials:

Step Schedule: Placement and Steps paid adequately for each classification
Base Increase each year of the contract
Bus Cleaning rate of pay
Clothing/Shoe Allowance Increases
Banquet Rate for Cooks
TPO Language

Insurance:

Who qualifies for insurance and at what rate do they pay? How do we ensure that insurance is available as a benefit to MBUs at a reasonable number of hours to qualify as well as at a reasonable cost to MBUs who qualify.

BOSS makes the following proposals with respect to housekeeping items only:

Dates that are not needed/misspellings/spaces/titles, etc.
Sick Leave Bank
Bus Challenge Runs no longer needed
Opt-Out Dates for BOSS/OEA membership, Ohio Fund Language, adequate notification of new members, time to meet with new members.

Enhanced Conventional Negotiations (ECN) Ground Rules

Teams

Board:

1. Jeff Harrison-Superintendent
2. Craig Yaniglos-Treasurer
3. Brian Wycuff-Assistant Superintendent
4. Amy Voigt-Food Service Coordinator
5. Brian Koss- Maintenance Supervisor
6. Fonzie Culver-Transportation Supervisor
7. Spencer Warders-Assistant Principal MS*
8. Joshua Backo-Assistant Principal HS*

* Will rotate days if needed

BOSS:

1. Lisa Cox
2. Frank Bova
3. Amanda Boros
4. Patrick Bialek
5. Elaine Hrusovsky
6. John Beckstrom
7. Maggie Andrejczak

BOSS Alternates

1. Bonnie Jill Piskac
2. Sharon Gallagher
3. Dan Brusk

Others:

Resource people: Either party may bring resource / expert people to the table, but they will be bound by these ground rules.

Quorum: Board – Superintendent (Jeff), Treasurer (Craig), Board counsel (Lindsay); BOSS – LRC (Susan), Vice President (Lisa), Past President (Frank)

Issues

In addition to compensation (salary) and insurance, each group may bring up to six (6) substantive issues to the table. The parties may also bring housekeeping/clean up items.

Parties agree to use ECN Issue Submittal forms which will be exchanged on May 13, 2024.
Housekeeping issues will be exchanged on May 13, 2024.

Parties will order and group issues on May 13, 2024.

Meetings

Dates: May 13, 14, 15, 23, 2024.

Location: Educational Service Center of Northeast Ohio

Financial / Insurance Presentations: Scheduled as needed.

Communications

Press releases: No press releases while in ECN bargaining.

Internal communications: Parties may share general information with their internal constituents, but not tentative agreements.

Confidentiality of discussions: Parties agree to keep the specifics of issue discussions during negotiations confidential.

Caucuses

Parties agree to try to keep caucuses to a maximum of thirty (30) minutes, but may extend the caucus when necessary by giving notice to one another.

Information processing:

Each party maintains its own notes and records.

Bargaining Information

Parties will request information necessary for bargaining on an as-needed basis.

Contract Language

Contract language to be TA'd at the table and initialed by both groups.

Current contract language that is unchanged remains unchanged in the new agreement.

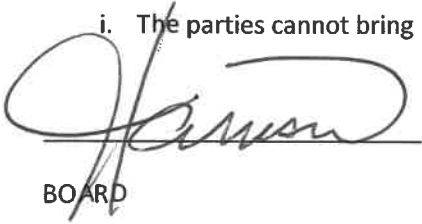
Process Norms

1. Parties will share individual interests and explore joint interests
2. Parties will expend effort to solve problems
3. No personal attacks
4. Listen to learn
5. One speaker at a time

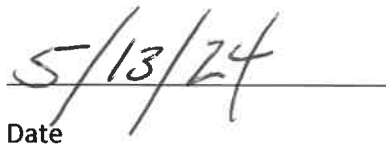
6. Respect everyone's time
7. Be present – turn off or mute electronics

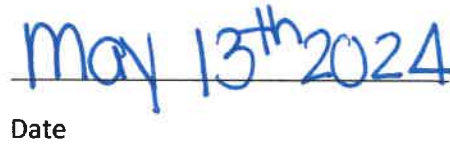
Transitional Ground Rules

1. Each party pledges an earnest effort to make ECN a successful venture. However, either party has the unilateral right to remove itself from the ECN process at any time without being charged with an unfair labor practice (ULP).
2. Items prior to transition.
 1. TAs remain TAs.
 2. Each party has the right to establish traditional bargaining positions on the remaining issues without regard to ECN discussions.
3. Issues not on agenda for ECN
 - i. The parties cannot bring proposals outside the original issues.


BOARD


BOSS


Date


Date

May 13, 2024 - Board Issues for ECN Bargaining (BOSS)

Cover Page – Board Issues

Issue Number 1: Substitution

Issue statement: What is the best way to fill substitutions related to bus drivers?

Issue Number 2: Personal Leave

Issue statement: How can we ensure employees continue to have use of personal leave when needed, while also ensuring that buildings/facilities/positions are properly staffed?

Issue Number 3: Time Sheets/Recording Time

Issue statement: How can the parties examine the way BOSS members record their time when working overtime/extra time outside their regular work day?

Issue Number 4: Number of Annual Pays

Issue statement: How can the parties examine moving from 26 pays to 24 pays in a way that continues to support BOSS members' and the District's payroll needs/process?

Issue Number 5: Special Education Assistants and Educational Assistants

Issue statement: How can the parties examine the classifications of Educational Assistants and Special Education Assistants and whether they could be reclassified into one classification as Paraprofessionals?

Issue Number 6: Assignment of Routes

Issue statement: How can the parties most efficiently assign bus routes each school year?

Additional Issues: Wages and Insurance

May 13, 2024 - Board Issues for ECN Bargaining (BOSS)

Issue Number 1: Substitution

Issue statement: What is the best way to fill substitutions related to bus drivers?

Issue focus (who/what/where/when that raised the issues – facts – what is not working?)

The current contract language (Sections 29.K.) outlines a substitution process based on classification seniority. This process can prove challenging when there are late call-offs. Additionally, bus drivers substituting for the courier is challenging based on institutional knowledge/timing.

Interests (needs, goals, desires, concerns, *why* is the issue a problem?, use bulleted statements, e.g. “improve morale”)

1. Improve/support substitution process
2. Make process more efficient
3. Align process to other classifications
4. Continue to honor seniority

May 13, 2024 - Board Issues for ECN Bargaining (BOSS)

Issue Number 2: Personal Leave

Issue statement: How can we ensure employees continue to have use of personal leave when needed, while also ensuring that buildings/facilities/positions are properly staffed?

Issue focus (who/what/where/when that raised the issues – facts – what is not working?)

The current contract language (Section 30) allows for three personal days each year, with the restricted time period defined as the last day of an employee's contract. The negotiated agreement also does not define the types of events/reasons for the use of personal leave. The Board would like to discuss further defining these issues, to support the proper use of personal leave while also ensuring buildings/facilities/positions are properly staffed.

Interests (needs, goals, desires, concerns, *why* is the issue a problem?, use bulleted statements, e.g. "improve morale")

1. Supporting use of personal leave
2. Ensuring proper staffing for buildings/facilities/positions
3. Supporting those working while others out on leave
4. Defining the process so it's clear to everyone

May 13, 2024 - Board Issues for ECN Bargaining (BOSS)

Issue Number 3: Time Sheets/Recording Time

Issue statement: How can the parties examine the way BOSS members record their time when working overtime/extra time outside their regular work day?

Issue focus (who/what/where/when that raised the issues – facts – what is not working?)

The current contract language (Section 44.I.) outlines the use of paper time sheets. The Board would like to explore how to record time for work outside BOSS members' regular work day/work hours.

Interests (needs, goals, desires, concerns, *why* is the issue a problem?, use bulleted statements, e.g. "improve morale")

1. Efficiency of process
2. Proper recording of time
3. More modern/simple process
4. Supporting staff knowledge of any new electronic process

May 13, 2024 - Board Issues for ECN Bargaining (BOSS)

Issue Number 4: Number of Annual Pays

Issue statement: How can the parties examine moving from 26 pays to 24 pays in a way that continues to support BOSS members' and the District's payroll needs/process?

Issue focus (who/what/where/when that raised the issues – facts – what is not working?)

The current contract language (Section 44.B.) outlines the number of annual pays (21 or 26). The Board would like to examine moving to 24 pays.

Interests (needs, goals, desires, concerns, *why* is the issue a problem?, use bulleted statements, e.g. "improve morale")

1. Improve payroll process
2. Consistent payroll process
3. Avoid skip pay
4. Supporting BOSS members' and district's payroll needs

May 13, 2024 - Board Issues for ECN Bargaining (BOSS)

Issue Number 5: Special Education Assistants and Educational Assistants

Issue statement: How can the parties examine the classifications of Educational Assistants and Special Education Assistants and whether they could be reclassified into one classification as Paraprofessionals?

Issue focus (who/what/where/when that raised the issues – facts – what is not working?)

The current contract language (Sections 23 and 28) has a classification for Educational Assistants and Special Education Assistants. The Board would like to explore combining these classifications at the higher rate of the Special Educational Assistant, where all are able to do the work of a paraprofessional, depending on the assigned position. The Board would also like to include Health Aides, Bus Aides, and Media Assistants at the higher rate.

Interests (needs, goals, desires, concerns, *why* is the issue a problem?, use bulleted statements, e.g. “improve morale”)

1. Improve flexibility for staffing
2. Support higher rate for Educational Assistants, health aides, bus aides, and media assistants
3. Continue to address assignments based on the best fit/individual’s skill set

May 13, 2024 - Board Issues for ECN Bargaining (BOSS)

Issue Number 6: Assignment of Routes

Issue statement: How can the parties most efficiently assign bus routes each school year?

Issue focus (who/what/where/when that raised the issues – facts – what is not working?)

The current contract language (Section 29) allows for the 12 most senior drivers to have 30 minutes to select their schedules and bus routes. The Board would like to examine shortening the time it takes to complete the scheduling process, while ensuring drivers have enough time to make decisions on schedules/routes.

Interests (needs, goals, desires, concerns, *why* is the issue a problem?, use bulleted statements, e.g. “improve morale”)

1. Efficient process
2. Fair process
3. Continuing to support seniority in the process

May 13, 2024 - Board Issues for ECN Bargaining (BOSS)

The BOE makes the following proposals with respect to housekeeping/clean up items only:

1. **ONLINE STORE** – Do the parties mutually want an online store, with staff being afforded a credit to purchase items, and then staff wearing BBH branded items to work?
2. **ESEA REQUIREMENTS FOR NEW HIRES** – by when do new employees need the endorsement?, and clean up language that no longer applies regarding prior school years
3. **SECTION 30.F. -LANGUAGE FOR MATERNITY** – Consider mirroring BEA (6 weeks/8 weeks)
4. **SECTION 30.G. - SICK LEAVE BANK** – Consider mirroring BEA (improved donation process)
5. **SECTION 12, PERSONEL FILES** – Now online, Consider mirroring BEA (remove reference to paper files)
6. **SECTION 13.B.3-PRIOR EXPERIENCE LANGUAGE**

An employee retained beyond his/her probationary period shall have his/her District seniority computed as of his/her Board effective date of hire and classification seniority computed as of his/her date of entry into the classification. A newly-hired regular employee may be allowed credit for job-related experience up to and including the third step. Evaluation and approval of this credit shall be made by the Superintendent/Designee. Credit for job-related experience will be prospective only and will go into effect the date the employee submits a written request for credit. The Superintendent/Designee shall notify the Treasurer's office of any credit for job- related experience.

7. **SECTION 16.A.- WORK SCHEDULE/ASSIGNMENT**

The regular work schedule shall be Monday through Friday. The beginning and ending time of the employee's day will be determined by the employee's supervisor within the first four (4) weeks of the first student school day for the 2022-2023 school year, and thereafter within the first three (3) weeks. In no way shall an employee's total daily/weekly hours of employment be reduced. If it is determined that an employee's schedule or shift will be changed, notification must be given to the employee prior to the beginning of a new school year. Notwithstanding the above, the schedule for positions that are driven by a student's individual education plan, 504 plan, or emergencies resulting in unanticipated student needs may be changed as the need arises, with two (2) weeks notice to the affected employee.

8. **SECTION 16.L.-CALL IN PROCEDURES** – Now online
9. **SECTION 22-HEAD CUSTODIAN/OUTDATED LANGUAGE**

For 2022-2023 school year only, Superintendent may assign within the Head Custodian classification at her discretion; two head custodians at each building, day and night.

10. **SECTION 29-MIDDAY PRE-CHECK**

Suggested new language to clarify: A thirty (30) minute pre-trip for a mid-day run will be part of a mid-day run only if the bus was not pre-tripped for an AM run.

11. **SECTION 29-TRANSPORTATION-USE OF VANS** – 9 PASSENGERS FROM 7 (New law)
12. **SECTION 32-COMMUNICABLE DISEASES** – Consider mirroring BEA (fixes outdated language)
13. **SECTION 36-HOLIDAYS** – Add Juneteenth
14. **SECTION 45-PAYROLL REDUCTIONS** – Consider mirroring BEA regarding

May 14, 2024 – Tentative Agreement – 830 AM

The parties tentatively agree as follows:

H. Assignment of All Routes and Schedules

1. Each Bus Driver will be allowed to pick a schedule according to classification seniority starting with the Bus Driver with the most classification seniority.
2. **Until all available midday routes are chosen,** senior Bus Drivers (using classification seniority) shall be scheduled at thirty (30) minute intervals to select his/her schedule and bus. **When all midday routes are selected, All all other Bus Drivers, (using classification seniority)** will be scheduled at fifteen (15) minute intervals to select his/her schedule and bus. The schedule and bus selection shall be completed at least **seven (7) calendar days ~~one (1) week~~** before the school year begins. **The routes and nonpublic school calendars shall be provided to Bus Drivers at least fourteen (14) calendar days before the school year begins. Updated/revised routes, if any, shall be provided as soon as possible prior to schedule/bus selection.**
 - a. Each schedule will have an estimated time of completion.
 - b. The bus assigned will be attached to each schedule, unless a change is necessary to accommodate a change in number of students or a student's physical needs.
3. Mid-day routes or Challenge runs shall also be selected by classification seniority, at the same time the selection process above is occurring, starting with the Bus Driver with the most classification seniority. These routes/runs will become part of the Bus Driver's regular daily schedule.
4. During the selection process, each Bus Driver will be paid a minimum of two (2) hours for selection, fueling, inspecting the bus, and checking the schedule.
5. **For the 2024-2025 school year the process described above will occur. Following the bidding process in August 2024, transportation negotiating team members and the Transportation Supervisor and Assistant Transportation Supervisor will meet to determine if additional adjustments to the time to complete the bidding process are necessary. If it is determined that the above process was successful in streamlining the bidding process it will continue as bargained, or the parties can mutually determine to adjust the time to complete bidding. If the parties cannot agree, the process will revert to what was in place during the 2023-2024 school year.**
6. The following time is guaranteed except for those who have been laid off:

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830am

OK 5/14/24

May 14, 2024 – Tentative Agreement – 830 AM

- a. Two (2) hours minimum shall be guaranteed for an A.M. route.
 - b. Two (2) hours minimum shall be guaranteed for a P.M. route.
- c. Two (2) hours minimum shall be guaranteed for a Mid-day route.
 - d. Fifteen (15) minutes shall be guaranteed for a Challenge run.
- 7. Punch-out time for A.M. routes will be a minimum of fifteen (15) minutes from discharge of students to the TMC. No allotment of additional time will be allowed except with the Transportation Supervisor's approval.
- 8. Bus Drivers will be expected to remain at the work site during the entire time for which they are scheduled and paid.
- 9. Once the driving time for a schedule has been established by the Transportation Supervisor and the Bus Driver, those hours shall be the minimum guaranteed on the schedule for the school year. This time shall be established within thirty (30) days of the establishment of the schedule.
- 10. A Bus Driver cannot bid a schedule which would result in overtime pay on a daily basis.
- 11. When an out-of-District and/or parochial school is scheduled to be in session and is canceled for reasons other than a calamity day, the Bus Driver will be paid for the time lost on his/her schedule.
- 12. This sub-Section (H) does not apply to special transportation assignments.

May 14, 2024 – Board Issue 3 – 10 AM

The parties tentatively agree as follows for Board Issue 3:

J. Time Sheets

1. Time sheets shall be provided to each employee.
2. Each employee shall complete his/her own time sheet every two weeks, if required by the District.
3. Completed time sheets shall be for the period of Thursday through Wednesday, in a two week cycle. Completed time sheets are not due to the employee's supervisor until the end of the day on the last Wednesday of the time sheet period. In the case of holidays occurring on the last Wednesday of the time sheet period, the completed time sheets are due to the employee's supervisor the last day before the holiday.

4. During the 2025-2026 school year at the earliest, the District may implement an electronic process ~~for recording time~~ in lieu of paper time sheets, for recording overtime, extra time, and/or substituting outside a bargaining unit member's regular contracted work hours. This electronic process can be utilized for certain classifications (i.e., "rolled out") in order to pilot the electronic process prior to rolling it out for the entire bargaining unit.

During the 2024-2025 school year, the parties will meet to review the options available for this electronic process and review how to best support staff in all classifications in utilizing the electronic process. If both parties agree that an electronic process is not practical or effective for a specific classification, that classification will be exempt.

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May 14, 2024 – TA 11 AM – Consensus Statement BOSS Issue 5

CONSENSUS STATEMENT

A consensus statement is a mutual agreement by the parties to faithfully execute an agreement, that is deemed to be essential to both parties and to their commitment moving forward.

It is recognized that communication concerning student discipline is essential to creating a safe and respectful school experience for all students and staff. The parties discussed the importance of the MBU reporting discipline issues to the appropriate supervisor and the supervisor communicating the outcome **or status** of the referral to the reporting MBU in a reasonable time frame. It was agreed that in most instances a 24 to 48 hour work day time frame is reasonable.

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May 15, 2024 – TA BOSS Issue 1 and Board Issue 5 – 1230 PM

The parties tentatively agree as follows:

The Board withdraws its issue 5.

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SECTION 16. – SCHEDULE AND WORK HOURS

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I. Substituting

1. Substituting is when an employee is requested by his/her supervisor to assume the job classification responsibilities of another employee.
2. All substitution amounts shall be paid from the first day of substitution and shall be paid whether the substitution occurs during or outside of the employee's scheduled day.
3. When an employee substitutes for another in the same job classification, he/she shall be paid at his/her normal hourly rate (straight time) unless eligible for overtime pay in accordance with Section 16.K. When an employee substitutes in a job classification that is a higher job classification in his/her present classification series, he/she shall be paid at step one of that higher job classification or ~~\$0.25~~ **\$0.75** per hour more than his/her normal hourly rate (straight time), whichever is greater, unless eligible for overtime pay in accordance with Section 16.K.
4. When an employee substitutes in a job classification that is a lower job classification in the same classification series, the employee shall be paid his/her normal hourly rate, unless otherwise eligible for overtime pay in accordance with Section 16.K for all or part of his/her substitution.
5. When an employee substitutes in a job classification that is in a different classification series, he/she shall be paid the greater of: (1) step one of the different classification series or (2) ~~\$0.25~~ **\$0.75** per hour more than his/her normal hourly rate. The employee may be eligible for overtime pay in accordance with Section 16.K for all or part of his/her substitution.
6. When an employee substitutes for a non-bargaining unit member, excluding supervisors, the substituting employee shall be paid at the highest step of the negotiated administrative assistant pay schedule. When substituting at a higher

classification or for a non-bargaining unit employee, the employee must indicate the name of the person for whom he/she substituting on his/her time sheet or he/she shall not receive the higher rate of pay.

7. When an employee substitutes in a job classification that is a lower job classification in the same classification series, the employee shall be paid his/her normal hourly rate, unless otherwise eligible for overtime pay in accordance with Section 16.K for all or part of his/her substitution.

8. When a transportation bargaining unit member drives a double back to substitute for a vacant route, the driver will be paid a one-time stipend in the last pay in June of \$1.50 for each double back submitted by the bargaining unit member on or before the last work day of the school year. \$1.50 an hour more than their regular rate of pay per hour for a minimum of one hour.

~~When a mechanic substitutes for an MBU in the transportation department more than five (5) times in a school year they will be paid a stipend of \$700. The stipend will be paid the last pay of the fiscal year in which the stipend was earned. (The Board does not accept this proposal.)~~

SECTION 29. – TRANSPORTATION

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J. Extra Assignments

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3. Extra assignments will go out no earlier than 9:45 A.M. 9:15 A.M. unless another time is specifically requested by the Transportation Supervisor.

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B. Definitions

1. Run – A run is picking up and dropping off a group of students. Presently there are A.M. runs, P.M. runs, Mid-day runs, and Challenge runs. For purposes of clarification, a run does not include special transportation for an individual student.

2. Route – A route is one or more runs. A Bus Driver could have a maximum of three (3) routes per day: A.M., P.M., and Mid-day.
3. Schedule – a Bus Driver's schedule is his/her total routes for the day.
4. Fringe Benefit Schedule – A fringe benefit schedule is a schedule that meets or exceeds five (5) hours and fifty-two (52) minutes in length and, as a result of meeting this time requirement, fringe benefits are provided to the employee.
5. Mid-day route – A mid-day route is either a kindergarten run, a pre-school run, CVCC, or a combination of these runs.
6. Extra Assignment – An extra assignment is when a bus is moved without transporting children or when a Bus Driver substitutes for the Courier.
7. Special Transportation – An assignment involving the transportation of an individual student.
8. Off-hour Field Trip – A field trip that interferes with a Bus Driver's regular schedule and is at least five (5) hours in duration.
9. Double Backs – A double back is defined as when a driver completes their contracted route and immediately drives another route that is vacant on a given day.

The parties tentatively agree as follows for Board Issue 2:

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E. Personal Leave

1. Each employee shall be granted up to three (3) days of personal leave each year (July 1st through June 30th) without loss of salary. For employees hired on or after July 1 but before December 31, he/she shall receive three (3) such days for that school year. For employees hired on or after January 1, he/she shall receive 1.5 such days for that school year. **Except for an MBU who does not normally require a substitute (i.e., same MBU as in Section 37, Vacation on Student Days), who Personal leave cannot be taken during “restricted time periods,” which are defined as last day of an employee’s contract, the first or last student day of the school year, any non-student school calendar day, and any Friday or Monday during the last four (4) two (2) weeks of school, or the day before or after holidays and long weekends during the school year holiday weekends.**

During the “restricted time periods”, personal leave may be approved for valid, disclosed reasons. Reasons that are considered to be valid are: funerals, weddings of the employee or of a family member, court appearances, emergencies that create a hazardous condition to the bargaining unit member’s family or property, graduations, school programs/events of the employee’s child, college visitations, formal religious functions, moving, and travel conditions beyond the bargaining unit member’s control making it impossible to report as assigned (documentation required for this last reason). Exceptions may be made at the absolute discretion of the Superintendent/designee with reason(s) for the request listed in the “Notes to the Administrator” of the online reporting system.

2. To apply for use of a personal leave day(s), the employee shall submit a “Request for Personal Leave” form to the Superintendent/Designee at least five (5) days in advance of the use of personal leave, unless an emergency exists.
 - a. Where an emergency exists, a request may be submitted to the Superintendent/Designee with less than the above-mentioned time schedule.
 - b. However, it is understood that certain circumstances may prevent submission of a request form prior to the emergency leave. In such instances, the employee shall

submit the “Request for Personal Leave” form (Attachment 2-A) the day following return from such leave. Any employee requesting emergency leave shall notify the person responsible for providing substitutes as much in advance as possible prior to said leave.

3. Up to one (1) unused personal leave day (inclusive of half day) shall be carried over into the next year. The maximum number of personal leave days allotted in any school year will not exceed four (4) days (i.e. three (3) days assigned for the new school year and one (1) carry over). Any other accrued but unused personal days at the end of each school year shall be converted to sick leave and added to that employee’s sick leave accumulation.

The parties tentatively agree as follows for Board Issue 1:

SECTION 18. – BUS AIDES

F. Substitution Outside the Normal Work Day

The following substitution language shall be utilized when 48-hours advanced notice of an employee's absence has been recorded by the supervisor/supervisor designee. Any substitution needing to be filled in less than 48 hours shall be filled by the first available employee or substitute. No employee may be called to accept a substitute position in this manner more than three consecutive opportunities before another MBU is called.

Regular daily Bus Aides will be used as substitutes when available for either the absent Bus Aide's A.M., Mid-day, or P.M. route and shall be used in all other circumstances before other substitutes are used. This will be done on a classification seniority basis but the seniority list is not continuously rotated. When a substitute is needed, the most senior available Bus Aide by classification is always contacted first and then the classification seniority list is used in order until an available regular Bus Aide substitute is found. If no regular Bus Aide is available to work the A.M., Mid-day, or P.M. routes(s) of the absent Bus Aide, the route(s) of the absent Bus Aide shall be given to a substitute.

- a. The availability of a regular daily Bus Aide will be determined by the pick-up and drop-off times for each route. If a regular Bus Aide is not available to handle his/her own route(s) and the A.M. or Mid-day or P.M. route(s) of the absent Bus Aide on the time specified by the established route schedule, a substitute will be used.
- b. When the Transportation Supervisor becomes aware that a Bus Aide will require an extended leave of absence (five or more work days), the most senior Bus Aide with lesser hours (at least 30 minutes less than the absent Bus Aide) will have the opportunity to substitute for the duration of the leave of absence. That Bus Aide's position will be filled by a substitute Bus Aide unless circumstances in F.1.c. apply.
- c. It is recognized that, due to the possible lack of available regular Bus Aides and lack of available substitutes, there will be exceptions to this procedure whereby a regular daily Bus Aide may serve as a substitute where the regular daily Bus Aide's own route may conflict with the route of the absent Bus Aide. These exceptions to the procedure will not be treated as past practice and will not

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be used by the parties in interpreting this paragraph.

2. Classification seniority will prevail (Bus Aide with most classification seniority first) in choosing regular Bus Aides as substitutes on Mid-day runs when possible. A list of regular daily Bus Aides wanting to substitute on runs will be posted, and only those Bus Aides will be called.
3. On days when a particular school(s) serviced by the District's Transportation Department is not in session, and other schools serviced by the District are in session, any Bus Aide who is not scheduled to work because a school(s) on his/her schedule is not in session shall be used as a substitute before an outside substitute is used.

SECTION 29. – TRANSPORTATION

6. Extra Assignment – An extra assignment is when a bus is moved without transporting children ~~or when a Bus Driver substitutes for the Courier.~~

J. Extra Assignments

1. A Bus Driver must be available to drive his/her regular daily schedule the work day of an extra assignment.
2. When the Transportation Department is requested to make any extra assignments for the Board Office, the Transportation Supervisor will assign the extra duty to a regular daily Bus Driver according to the Extra Assignment List. All Bus Drivers will be placed on the Extra Assignment List according to classification seniority. This list of names shall rotate continuously. Minimum time guaranteed will be two (2) hours where the employee's Extra Assignment is not adjacent to his/her regular schedule.
 - a. Whenever any transportation vehicle is sent out for maintenance or repairs, this is an extra assignment. A regular daily Bus Driver will be used to transport the vehicle to and from the facility unless it is in the service contract that the company servicing the vehicle will transport the vehicle without any additional cost. In rare situations when the bus has major mechanical problems and may possibly break down during the transporting, the mechanic may be used instead of a regular Bus Driver.

- b. ~~Whenever the Courier needs a substitute, this will be considered an Extra Assignment and J.2 (above) will be followed. (Note: Make this a New section in Section 21, Courier)~~

When the position of Courier is filled by more than one bargaining unit member, a Courier who is not absent is the first person offered to substitute. In the event there is not a second Courier, or a second Courier is not available to substitute, the substitution may be filled: (1) first, by one of up to three Bus Drivers who are properly trained and available for the entire Courier shift; and (2) second, by a non-employee substitute. The three drivers shall be selected through an interview process.

3. Extra assignments will go out no earlier than 9:45 A.M. unless another time is specifically requested by the Transportation Supervisor.

K. Substitution Outside the Bus Driver's Scheduled Day

1. Regular daily Bus Drivers will be used as substitutes when available for either the absent Bus Driver's A.M., Mid-day, or P.M. route and shall be used before other substitutes are used. This will be done on a classification seniority basis but the seniority list is not continuously rotated. When a substitute is needed, the most senior available Bus Driver is always contacted first and then the classification seniority list is used in order until an available regular Bus Driver substitute is found. If no regular Bus Driver is available to drive the A.M., Mid-day, or P.M. routes(s) of the absent Bus Driver, the route(s) of the absent Bus Driver shall be driven by a substitute.
 - a. The availability of a regular daily Bus Driver will be determined by the pick-up and drop-off times for each route as established by the Transportation Supervisor and regular Bus Driver. If a regular Bus Driver is not available to handle his/her own route(s) and the A.M. or Mid-day or P.M. route(s) of the absent Bus Driver on the time specified by the established route schedule, a substitute will be used.
 - b. In the situation of a Bus Driver's extended leave, the regular Bus Driver who is available and agrees to

substitute for a specific route will substitute for that route for the duration of the absent Bus Driver's leave.

- c. It is recognized that, due to the possible lack of available regular Bus Drivers and lack of available substitutes, there will be exceptions to this procedure whereby a regular daily Bus Driver may serve as a substitute where the regular daily Bus Driver's own route may conflict with the route of the absent Bus Driver. These exceptions to the procedure will not be treated as past practice and will not be used by the parties in interpreting this paragraph.
 - d. Classification seniority will prevail (driver with most classification seniority first) in choosing regular Bus Drivers as substitutes on Mid-day and Challenge runs when possible. A list of regular daily Bus Drivers wanting to substitute on runs will be posted, and only those Bus Drivers will be called. Any open Challenge run will be filled by classification seniority from the regular Bus Drivers at that school.
2. On days when a particular school(s) serviced by the District's Transportation Department is not in session, and other schools serviced by the District are in session, any Bus Driver who is not scheduled to drive because a school(s) on his/her schedule is not in session shall be used as a substitute before an outside substitute is used.
3. Only regular daily Bus Drivers shall operate school busses unless there is an emergency. Mechanics may also operate school busses but only in the following situations: (1) on or around the bus compound, (2) to test drive busses, and, (2) when the bus has a major mechanical problem and may possibly break down. Additionally, mechanics may drive busses on runs, routes, schedules and field trips but ONLY when a regular Bus Driver cannot do it and a Bus Driver substitute or a regular substitute cannot be found. However, when the mechanic is driving the bus on a field trip when a regular Bus Driver/substitute cannot be found, this does not change the practice of having the mechanic drive the first leg only of the field trip. Bus Drivers and mechanics must hold valid certificates required to operate a school vehicle.

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The Parties tentatively agree as follows:

SECTION 44. – PAYROLL PRACTICES

B. Number of Annual Pays

1. For the 2024-2025 and 2025-2026 school years, the following applies:

Normally, an employee's base pay shall be divided evenly based upon the employee's hourly rate times the number of hours, scheduled annually, as follows. With the exception of Bus Drivers and Bus Aides, if an entire classification of employees working fewer than twelve (12) months, unanimously votes to be paid over 26 pays, they shall be paid over 26 pays. The Board Treasurer shall be notified no later than June 15th of any change in the number of annual pays for a classification.

- | | | |
|----|--|---------|
| a. | An employee working fewer than 12 months | 21 pays |
| b. | A twelve month employee | 26 pays |

Beginning with the 2026-2027 school year, the following applies:

Normally, an employee's base pay shall be divided evenly based upon the employee's hourly rate times the number of hours, scheduled annually, as follows.

- | | | |
|----|---|---------|
| a. | All employee classifications with the exception of
Bus Drivers and Bus Aides | 24 pays |
|----|---|---------|

Bus drivers and bus aides are paid by time entry as they work.

- | | | |
|----|--|---------|
| a. | An employee working fewer than 12 months | 21 pays |
| b. | A twelve month employee | 26 pays |

Employees shall be paid semi-monthly on the 5th and 20th of the month. If the 5th or the 20th occurs on a weekend or holiday, MBU will receive payroll within one business day of the established pay date. MBU will receive a payroll calendar annually.

2. A notification sheet from the Board Treasurer shall accompany the first paycheck after July 1st of each year which will explain the amount of base pay.

Handwritten:
X 5/14/24
1004
5-14-24

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The parties tentatively agree as follows. All other parts of the negotiated agreement, other than prior tentative agreements, remain current contract language:

OK 5/15/24
LCB
5/15/2024

SECTION 47. – SALARY SCHEDULES

Effective July 1, 2021, **July 1, 2024**, employees will receive a **two and 85/100ths percent (2.85%)** ~~two and three-fourths percent (2.75%)~~ increase to the base. ~~Retroactive pay for contracted hours only (from July 1, 2021 through ratification of this agreement) will be paid in the first pay of January 2022.~~

Effective July 1, 2022, **July 1, 2025**, employees will receive a **three percent (3%)** ~~two and three-fourths (2.75%) percent~~ increase to the base.

Effective July 1, 2023, **July 1, 2026**, employees will receive a **three percent (3%)** ~~two and three-fourths (2.75%) percent~~ increase to the base.

All steps frozen in the past will not be restored.

~~In addition, all members of the bargaining unit will receive a one-time educational stipend of three Hundred Dollars (\$300.00) to be paid within thirty (30) days after ratification of this agreement by both parties.~~

Furthermore, the following additional hourly increase ~~have has~~ been added to the salary schedules and shall be retroactive for contracted hours only to July 1, 2021:

~~All Members: An additional increase of 50 cents per hour for each member during 2021-2022; 2022-2023; and 2023-2024 school years.~~

~~Food Service: An additional increase of 25 cents per hour for each member during the 2021-2022 school year (in addition to the "All Members" increase above).~~

~~Custodian II: An additional increase by 50 25 cents per hour for each member during the 2024-2025 school year, as reflected in the salary schedules below. 2021-2022 school year (in addition to the "All Members" increase above).~~

The following Classification Series shall be consolidated and/or removed effective with the 2021-2022 school year:

Maintenance Classification Series Changes

Combine Maintenance II and III, to become Maintenance II, effective July 1, 2021.

Remove Maintenance IV Classification and reassign any employee to Custodian I, effective July 1, 2021.

Custodian Classification Series Changes

Consolidate all Head Custodian Classifications at each building into a single Head Custodian Classification effective July 1, 2021.

Delete the Central Classification and Custodial Foreman Classification effective July 1, 2021.

Consolidate the Custodian I High School / Middle School and Custodian I Elementary, into a single Custodian I classification series effective July 1, 2021.

Cafeteria Staff Classification Series Changes

Consolidate High School Head Cook / Head Cooks into a single Head Cook Classification effective July 1, 2021.

Delete the Assistant Head Cook HS Classification effective July 1, 2021.

(Note: The parties agree to delete and replace the salary schedules below with the updated salary schedules which are included here for the 24-25, 25-26 and 26-27 school years. A new step 11 is included in the updated schedules below.)

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[illegible]

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[illegible]

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Prior Year Base	17.05																			
23-24	17.52	2.75%																		
	BASE																			
Administrative Assistants 1.50 ADD'L				Head Custodian 1.50 ADD'L				Maintenance I/ Mechanic 1.50 ADD'L				Bus Aides 1.50 ADD'L								
1	1.350	23.65	25.15	1	1.570	27.50	29.00	1	1.695	29.69	31.19	1	1.056	18.50	20.00					
2	1.370	24.00	25.50	2	1.590	27.86	29.36	2	1.715	30.04	31.54	2	1.076	18.85	20.35					
3	1.390	24.35	25.85	3	1.610	28.21	29.71	3	1.735	30.40	31.90	3	1.096	19.20	20.70					
4	1.410	24.70	26.20	4	1.630	28.56	30.06	4	1.755	30.75	32.25	4	1.116	19.55	21.05					
5	1.430	25.05	26.55	5	1.650	28.91	30.41	5	1.775	31.10	32.60	5	1.136	19.90	21.40					
6	1.450	25.40	26.90	6	1.670	29.26	30.76	6	1.795	31.45	32.95	6	1.156	20.25	21.75					
7	1.470	25.75	27.25	7	1.690	29.61	31.11	7	1.815	31.80	33.30	7	1.176	20.60	22.10					
8	1.490	26.10	27.60	8	1.710	29.96	31.46	8	1.835	32.15	33.65	8	1.196	20.95	22.45					
9	1.510	26.45	27.95	9	1.730	30.31	31.81	9	1.855	32.50	34.00	9	1.216	21.30	22.80					
10	1.520	26.63	28.13	10	1.740	30.48	31.98	10	1.865	32.67	34.17	10	1.226	21.48	22.98					
Secretary/ Receptionist 1.50 ADD'L				Custodian I 1.50 ADD'L				Maintenance II 1.50 ADD'L				Head Cook 1.50 ADD'L								
1	1.160	20.32	21.82	1	1.325	23.21	24.71	1	1.550	27.15	28.65	1	1.180	20.67	22.17					
2	1.180	20.67	22.17	2	1.345	23.56	25.06	2	1.570	27.50	29.00	2	1.200	21.02	22.52					
3	1.200	21.02	22.52	3	1.365	23.91	25.41	3	1.590	27.86	29.36	3	1.220	21.37	22.87					
4	1.220	21.37	22.87	4	1.385	24.26	25.76	4	1.610	28.21	29.71	4	1.240	21.72	23.22					
5	1.240	21.72	23.22	5	1.405	24.61	26.11	5	1.630	28.56	30.06	5	1.260	22.07	23.57					
6	1.260	22.07	23.57	6	1.425	24.96	26.46	6	1.650	28.91	30.41	6	1.280	22.42	23.92					
7	1.280	22.42	23.92	7	1.445	25.31	26.81	7	1.670	29.26	30.76	7	1.300	22.77	24.27					
8	1.300	22.77	24.27	8	1.465	25.67	27.17	8	1.690	29.61	31.11	8	1.320	23.12	24.62					
9	1.320	23.12	24.62	9	1.485	26.02	27.52	9	1.710	29.96	31.46	9	1.340	23.48	24.98					
10	1.330	23.30	24.80	10	1.495	26.19	27.69	10	1.720	30.13	31.63	10	1.350	23.65	25.15					
Special Education Assistants 1.50 ADD'L				Custodian II 2.00 ADD'L				Veh Maint & Maint Foreman 1.50 ADD'L				Cook I 1.50 ADD'L								
1	1.065	18.66	20.16	1	0.870	15.24	17.24	1	1.755	30.75	32.25	1	0.960	16.82	18.32					
2	1.085	19.01	20.51	2	0.890	15.59	17.59	2	1.775	31.10	32.60	2	0.980	17.17	18.67					
3	1.105	19.36	20.86	3	0.910	15.94	17.94	3	1.795	31.45	32.95	3	1.000	17.52	19.02					
4	1.125	19.71	21.21	4	0.930	16.29	18.29	4	1.815	31.80	33.30	4	1.020	17.87	19.37					
5	1.145	20.06	21.56	5	0.950	16.64	18.64	5	1.835	32.15	33.65	5	1.040	18.22	19.72					
6	1.165	20.41	21.91	6	0.970	16.99	18.99	6	1.855	32.50	34.00	6	1.060	18.57	20.07					
7	1.185	20.76	22.26	7	0.990	17.34	19.34	7	1.875	32.85	34.35	7	1.080	18.92	20.42					
8	1.205	21.11	22.61	8	1.010	17.69	19.69	8	1.895	33.20	34.70	8	1.110	19.45	20.95					
9	1.225	21.46	22.96	9	1.030	18.04	20.04	9	1.915	33.55	35.05	9	1.120	19.62	21.12					
10	1.235	21.64	23.14	10	1.040	18.22	20.22	10	1.925	33.72	35.22	10	1.130	19.80	21.30					
Health Aides, Media Assts, Ed Assts 1.50 ADD'L				Computer Technician 1.50 ADD'L				Bus Drivers/Instructor 1.50 ADD'L				Food Service Workers 1.75 ADD'L								
1	1.056	18.50	20.00	1	1.180	20.67	22.17	1	1.355	23.74	25.24	1	0.830	14.54	16.29					
2	1.076	18.85	20.35	2	1.200	21.02	22.52	2	1.375	24.09	25.59	2	0.850	14.89	16.64					
3	1.096	19.20	20.70	3	1.220	21.37	22.87	3	1.395	24.44	25.94	3	0.870	15.24	16.99					
4	1.116	19.55	21.05	4	1.240	21.72	23.22	4	1.415	24.79	26.29	4	0.890	15.59	17.34					
5	1.136	19.90	21.40	5	1.260	22.07	23.57	5	1.435	25.14	26.64	5	0.910	15.94	17.69					
6	1.156	20.25	21.75	6	1.280	22.42	23.92	6	1.455	25.49	26.99	6	0.930	16.29	18.04					
7	1.176	20.60	22.10	7	1.300	22.77	24.27	7	1.475	25.84	27.34	7	0.950	16.64	18.39					
8	1.196	20.95	22.45	8	1.320	23.12	24.62	8	1.495	26.19	27.69	8	0.970	16.99	18.74					
9	1.216	21.30	22.80	9	1.340	23.48	24.98	9	1.515	26.54	28.04	9	0.990	17.34	19.09					
10	1.226	21.48	22.98	10	1.350	23.65	25.15	10	1.525	26.72	28.22	10	1.000	17.52	19.27					
Courier 1.50 ADD'L																				
1	1.286	22.53	24.03																	
2	1.306	22.88	24.38																	
3	1.326	23.23	24.73																	
4	1.346	23.58	25.08																	
5	1.366	23.93	25.43																	
6	1.386	24.28	25.78																	
7	1.406	24.63	26.13																	
8	1.426	24.98	26.48																	
9	1.446	25.33	26.83																	
10	1.456	25.51	27.01																	

SECTION 41. – DENTAL INSURANCE

- A. The Board shall provide a Dental Plan comparable to the current Coresource program (comparable to the former Oasis Trust Dental Plan #B2897), with ~~\$1,500~~ **\$2,500** annual maximum, \$1,000 lifetime maximum for orthodontics per person, individual deductibility - \$25, and family deductibility - \$50, for each employee regularly working thirty (30) or more hours per week. The Board will pay the current percentage until November 1, 2012, then eighty-five percent (85%) of the dental coverage. **Effective October 1, 2025, the Board will pay up to eighty-four percent (84%) of the dental premium. Effective October 1, 2026, the Board will pay up to eighty-three and a half percent (83.5%) of the dental premium.**
- B. For each employee working twenty (20) hours or more but fewer than thirty (30) hours per week, the employee may enroll in dental insurance and shall pay a pro-rated amount based on a forty (40) hour week. Those hired on or before May 1, 1998, shall not be required to pay more than forty-five percent (45%) and the Board shall pay fifty-five percent (55%) of the monthly premium costs. For employees working fewer than twenty (20) hours per week, no coverage is available.
- C. An employee may discontinue coverage at any time; however, the employee may not re-enroll until the next open enrollment period.
- D. Payroll deduction authorizations of the employee's share of the premium shall be the method of payment.

SECTION 42. – PRESCRIPTION DRUG COVERAGE

- A. ~~The Board shall provide a prescription drug plan comparable to the current Medco program - \$5 generic/\$10 formulary/ \$18 non-formulary (or 10/20/36 mail order) for each employee regularly working thirty (30) or more hours per week. The Board will pay the current percentage until November 1, 2012, then eighty-five percent (85%) of the premium.~~

Effective January 1, 2022, the Board shall provide a prescription drug plan comparable to Medical Mutual of Ohio Prescription Drug Plan – with a \$10 (generic) /\$15 (name brand formulary drug) / \$25 (name brand non-formulary drug) co-pay or \$20/\$30/\$50 mail order co-pay. The Board will pay up to 85% of the prescription drug premium. Employees electing coverage under Section 44 above must likewise elect to take coverage under Section 45. **Effective October 1, 2025, the Board will pay up to 84% of the prescription drug premium. Effective October 1, 2026, the Board will pay up to 83.5% of the prescription drug premium.**

- B. For each employee working twenty (20) hours or more but fewer than thirty (30) hours per week, the employee may enroll in prescription insurance and shall pay a pro-rated premium based on a forty (40) hour week. Those hired on or before May 1, 1998, shall not be required to pay more than forty-five percent (45%) and the Board shall pay fifty-five percent (55%) of the monthly premium costs. For employees working fewer than twenty (20) hours per week, no coverage is available. Employees electing coverage under Section 44 above must likewise elect to take coverage under Section 45.

- C. An employee may discontinue coverage at any time; however, the employee may not re-enroll until the next open enrollment period.
- D. Payroll deduction authorizations of the employee's share of the premium shall be the method of payment.
- E. The parties agree to add a Minimum Value Insurance Plan to comply with the Affordable Health Care Plan requirements.

SECTION 43. – MEDICAL INSURANCE

A. Hospitalization and Medical

- 1. The Board shall provide hospitalization and medical insurance coverage in the Consortium 1(A) Plan (see attached). Effective January 1, 2022, the Board shall provide hospitalization and medical insurance coverage in the Consortium Modified Ideal Plan 3.2B (see attached) for eligible employees.

- 2. Premiums for coverage shall be as follows:

- a. Employees working thirty (30) hours or more per week:

Current percentage until November 1, 2012, then eighty-five percent (85%) Board-paid. **Effective October 1, 2025, the Board will pay up to 84% of the hospitalization and medical insurance premium. Effective October 1, 2026, the Board will pay up to 83.5% of the hospitalization and medical insurance.**

- b. Employees working fewer than thirty (30) hours per week, but twenty (20) hours or more per week:

- 1) Single

Current percentage until November 1, 2012, then eighty-five percent (85%) Board-paid. **Effective October 1, 2025, the Board will pay up to 84% of the hospitalization and medical insurance premium. Effective October 1, 2026, the Board will pay up to 83.5% of the hospitalization and medical insurance.**

- 2) Family

- a) If the employee is hired before May 1, 1998, the Board shall pay fifty-seven percent (57%) of the difference between the cost of the single and family coverage premiums. The employee shall pay forty-three percent (43%). Effective January 1, 2011, the Board will pay fifty-five percent (55%)

of the difference in premium and the employee will be forty-five percent (45%).

- b) If the employee is hired after May 1, 1998, the employee shall pay a pro-rated amount of the difference between the cost of single and family premiums based upon the employee's regularly scheduled hours per week as a ratio to forty (40) hours per week and will additionally pay eight percent (8%) of the Board's premium amount. Effective January 1, 2011, the employee will pay and additional ten percent (10%) of the hospitalization and medical coverage.
- 3. The monthly insurance premium will be deducted from the employee's paychecks using the Section 125 Plan.
- 4. In the case of a layoff of employees, the Board will pay one (1) month of the Board's premium for the coverage described in Sections 42, 43, 44, and 45 following the layoff.
- 5. In the event of an injury at work compensable under the Worker's Compensation statutes, the Board will pay up to twelve (12) weeks of the Board's premium for the coverages described in Sections 42, 43, 44, and 45 if the employee cannot return to work.

B. Statement Verification

Each employee, upon receipt of any statement from a health care provider which is submitted for payment under any insurance provided by the Board under this Agreement, shall have the obligation to review such statement for accuracy and to satisfy him/herself that all services charged were actually received. If an employee identifies an overcharge and/or inappropriate charge, which is subsequently rebated or deleted by the health care provider, that employee shall receive a reward equal to one-half (1/2) the dollar amount recovered, up to a maximum of \$500 per line error.

C. Spousal Enrollment

If an employee's spouse is eligible to participate, as a current employee or retiree in group health insurance and/or prescription drug insurance sponsored by his/her employer or any public retirement plan, the spouse must enroll in such employer (or public retirement plan) sponsored group insurance coverage(s).

This requirement does not apply to any spouse who works less than thirty (30) hours per week AND is required to pay more than fifty percent (50%) of the single premium to participate in his/her employer's group health insurance coverage and/or prescription drug insurance coverage. This requirement also does not apply to any spouse who is a retiree under a public retirement plan and enrolled in Medicare coverage.

Upon the spouse's enrollment in any such employer (or public retirement plan) sponsored group insurance coverage, that coverage will become the primary payor of benefits, and

the coverage sponsored by the Board of Education will become the secondary payor of benefits.

Any spouse who fails to enroll in any group insurance coverage sponsored by his/her employer or any public retirement plan, as required by this Section, shall be ineligible for benefits under such group insurance coverage sponsored by the 'Board of Education.

Every employee whose spouse participates in the Board of Education's group health insurance coverage and-prescription drug insurance coverage shall complete and submit to the Board of Education, upon request, a written certification verifying whether his/her spouse is eligible to participate in group health insurance coverage and prescription drug insurance coverage sponsored by the spouse's employer or any public retirement plan. If any employee fails to complete and submit the certification form by the required date, such employee's spouse will be removed immediately from all health and prescription drug insurance coverages sponsored by the Board of Education. Additional documentation may be required.

If the employee submits false information or fails to timely advise the Plan of a change in his/her spouse's eligibility for employer (or public retirement plan) sponsored group health insurance and/or prescription drug insurance, and such false information or such failure by the employee results in the Plan providing benefits to which the employee's spouse is not entitled, the employee will be personally liable to the Plan for reimbursement of benefits and expenses, including attorneys' fees and costs, incurred by the Plan. Any amount to be reimbursed by the employee may be deducted from the benefits to which the employee would otherwise be entitled. In addition, the employee's spouse will be terminated immediately from group health insurance and/or prescription drug insurance coverage under the Plan. If the employee submits false information, the employee may be subject to disciplinary action by the Board, up to and including termination of employment.

D. Insurance Study Committee

An Insurance Study Committee shall be formed which is advisory to the Organization and the Administration. The purpose of this committee is to "troubleshoot" concerns with present insurance coverages along with developing cost-saving alternatives to the present insurance plan. This committee shall be comprised of representatives appointed by the Superintendent and representatives appointed by the Organization President and shall meet on a quarterly basis or as otherwise agreed. The number of persons comprising this committee shall be by mutual agreement. The parties agree that this committee may meet in conjunction with other District insurance committees in order to develop uniform and District-wide recommendations.

E. Payment in Lieu of Insurance Coverage

1. An employee regularly working thirty (30) or more hours per week may elect not to receive all of the Medical/Hospitalization/prescription insurance coverage provided above and instead elect to receive additional compensation of \$2,000 per year, less applicable payroll deductions, to be paid the first pay in October the following year.

2. In order to elect this option and receive this additional compensation, the employee must, during the month of September in a given year, complete, sign and file with the Board Treasurer a form indicating his/her election or forfeit this benefit. Except as provided below, once this election is made, it shall remain in effect and the employee shall not be entitled to receive coverage provided above for the duration of the one-year period.
3. Notwithstanding the foregoing, during the year an employee may revoke his or her prior election of no coverage and prospectively elect to receive the insurance coverage if there is a change in the employee's circumstances (e.g., **any recognized qualifying event such as** divorce, death of spouse, employee or spouse loses insurance coverage, marriage, birth or adoption of a child, placement for the adoption of a child, a child losing eligibility for coverage, a court order requiring coverage for a child, or certain enrollment rights required by ERISA and/or other federal law). There shall be no pre- existing condition exclusion for any employee who re-enters the insurance program provided above after originally electing not to participate in said program. If an employee elects to receive the insurance coverage after first opting for the payment in lieu of insurance coverage, he/she shall receive a pro-rata dollar amount of the payment in lieu of insurance coverage for the months he/she was not receiving insurance coverage. The pro-rata amount is based on a twelve- month period.
4. In approving this Agreement, the Board shall be deemed to have established a "cafeteria plan" that is consistent with the foregoing under paragraph 3, above, and intended to meet the requirements of Internal Revenue Code Section 125 and applicable regulations and rulings thereunder.

F. The parties agree to add a Minimum Value Insurance Plan to comply with the Affordable Health Care Plan requirements.

The Parties agree to the following MOU language, that shall be in place for the 2024-2025, 2025-2026, and 2026-2027 contract years. The MOU shall thereafter expire unless otherwise negotiated by the parties.

Bus Driver and Bus Aide Benefits

1. For bus drivers and bus aides working thirty (30) or more hours while employed prior to December 31, 2021, and who remain employed with the District on a continuous basis thereafter, he/she shall be entitled to maintain their level of benefits (single or family, medical and prescription drug) starting with the January 1, 2022 calendar year, and through the 2026-2027 work year, even if such bus driver or Bus Aide works fewer than thirty (30) hours. He/she shall remain responsible for paying the premiums that apply to employees working thirty (30) hours or more. Bus drivers and Bus Aides that work below 20 hours or less per week would not be entitled to any medical, prescription or dental benefits.
2. If any provisions of the CBA conflict with this MOU, this MOU shall prevail.
3. The Parties agree that this Memorandum is not otherwise precedent setting and that this document will not be introduced in any subsequent action as between them.

Section 19 – Cafeteria

F. Uniforms

1. Each Food Service employee shall be furnished with **one (1) BBH-branded three (3) uniform shirts annually**. Every effort will be made to have the shirts furnished at the start of the school year. The Food Service Supervisor will determine which style shirt will be purchased for the Food Service Department.
2. Each Food Service employee will be provided with a yearly clothing allowance of **~~\$75.00~~ \$55.00** for the purchase of appropriate ~~shoes~~ **BBH-branded shirts** and/or pants, **and \$75.00 for shoes**, as determined by the Food Service Supervisor. Respective receipts will be presented to the Food Service Supervisor by November 15th. Reimbursement for these purchases will be made by December 15th. **Once an online store for purchasing work clothing is available to staff, such items shall be purchased through the store with the credit above allocated to staff. Shoes shall continue to be a reimbursement item.**
3. Food Service employees will have the option to purchase a long sleeve shirt(s) in place of the short sleeve shirt provided, if they pay the cost in excess of the purchase price of the standard short sleeve shirt provided.
4. **Staff shall be required to wear BBH-branded clothes; however, it is understood that a MBU may not have enough BBH-branded clothes to wear only BBH-branded clothes during the 2024-2027 negotiated agreement.**

Section 25 – Maintenance

E. Clothing

1. The Board will provide a yearly allowance of **~~\$200~~ \$100** for the ~~cleaning/purchasing~~ of **BBH-branded** uniforms/clothing and **five (5) shirts per year** for each Maintenance Employee.
 2. The Board will provide a yearly shoe allowance of **~~\$75~~ \$175** for each Maintenance Employee upon the employee presenting an appropriate receipt by May 1st and the employee shall be reimbursed within four (4) weeks. **Once an online store for purchasing work clothing is available to staff, such items shall be purchased through the store with the credit above allocated to staff. Shoes shall continue to be a reimbursement item.**
 3. **Staff shall be required to wear BBH-branded clothes; however, it is understood that a MBU may not have enough BBH-branded clothes to wear only BBH-branded clothes during the 2024-2027 negotiated agreement.**
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Section 26 – Mechanics

C. Uniforms

1. The Board will provide laundry services for Mechanics so that each Mechanic will have one cleaned uniform for each work day.
2. The Board will provide a yearly allowance of **\$100 \$275** for **BBH-branded** clothing, ~~shoes and related safety accessories~~ necessary for the job, **and \$175 for shoes**, upon presentation of an appropriate receipt(s) to the Transportation Supervisor. A receipt(s) must be submitted by May 1st and the employee shall be reimbursed within four (4) weeks of submitting the receipt(s). **Once an online store for purchasing work clothing is available to staff, such items shall be purchased through the store with the credit above allocated to staff. Shoes shall continue to be a reimbursement item.**
3. **Staff shall be required to wear BBH-branded clothes; however, it is understood that a MBU may not have enough BBH-branded clothes to wear only BBH-branded clothes during the 2024-2027 negotiated agreement.**

Section 22 – Custodial

G. Clothing

The Board will provide a yearly amount of **\$100 \$75** for employees employed more than 20 hours per week in the custodial classification (\$50 for employees employed 20 or fewer hours per week in the custodial classification) appropriate **BBH-branded** work ~~shoes and/or clothing (excluding under garments)~~, **and \$25 for shoes**, necessary for the job for each employee in the Custodial Department upon the employee presenting an appropriate receipt to the Building and Grounds Supervisor. Receipt(s) must be submitted by May 1st and the employee shall be reimbursed within four (4) weeks of submitting the receipt(s). **Once an online store for purchasing work clothing is available to staff, such items shall be purchased through the store with the credit above allocated to staff. Shoes shall continue to be a reimbursement item.**

Staff shall be required to wear BBH-branded clothes; however, it is understood that a MBU may not have enough BBH-branded clothes to wear only BBH-branded clothes during the 2024-2027 negotiated agreement.

Add the following new lettered paragraph to Section 18, Bus Aides (New “J”), and Section 29, Transportation (New “Y”)

Clothing

1. The Board will provide a yearly allowance of \$100 for the purchasing of BBH-branded clothing for each Bus Driver and Bus Aide upon the employee presenting an appropriate receipt by May 1st and the employee shall be reimbursed within four (4) weeks. Once an online store for purchasing work clothing is available to staff, such items shall be purchased through the store with the credit above allocated to staff.
2. Staff shall be required to wear BBH-branded clothes; however, it is understood that a MBU may not have enough BBH-branded clothes to wear only BBH-branded clothes during the 2024-2027 negotiated agreement.

Section 19 – Cafeteria

B. Banquet Rate for Food Service Workers

1. The banquet rate for a Food Service Worker per hour shall be ~~\$17.00~~ **\$17.50, or the Food Service Worker's hourly rate, whichever is higher.**
2. The banquet rate for a Cook I and a Head Cook per hour will be ~~\$19.50~~ **\$20.00, or the Cook I and Head Cook's hourly rate, whichever is higher.**

Section 29 – Transportation

Q. Cleaning Busses

Any Bus Driver who has to wash the interior of a bus due to muddy, safety, or health conditions, shall be paid a minimum of two (2) hours at his/her regular rate of pay unless the washing is adjacent to his/her regular schedule, in which case the Bus Driver will be paid his/her actual time. If this results in an overtime situation, the Bus Driver will be paid the overtime rate.

During the summer, the rate of pay for summer bus and van cleaning shall be \$15.00 per hour.

May 15, 2024 – Tentative Agreement - **TIME**

The parties tentatively agree as follows. All other parts of the negotiated agreement, other than prior tentative agreements, remain current contract language:

Section 30 – Leaves

F. Sick Leave

1. Each employee shall be granted sick leave on the following basis: one and one-quarter (1-1/4) days for each completed month of service or fifteen (15) days for each completed year of service.
2. If needed, up to five (5) days of sick leave shall be advanced to each employee without accumulated sick leave at the beginning of each school year.
3. Unused sick leave shall have unlimited accumulation.
4. Each employee shall be informed, with each paycheck and in writing, the number of sick leave days he/she has accumulated.
5. An employee on an approved leave of absence (other than paid sick leave) shall neither accrue nor lose accumulated sick leave while on said leave. An employee on paid sick leave may accrue leave at the rate of one and one-quarter (1-1/4) days for each completed month of service.
6. Any sick leave earned and unused in prior public service in Ohio, in compliance with Section 3319.141 of the Ohio Revised Code, shall be transferred to the employee's account in the Brecksville-Broadview Heights City School District at the time of employment, provided that such re-employment takes place within ten (10) years of the date on which the employee was last terminated from public service. Participation in any sick leave conversion plan nullified the transfer of sick leave from prior public service.
7. Acceptable reasons for use of sick leave are:
 - a. Absence due to illness, injury, or death in the immediate family. For the purpose of this sub-Section only, "immediate family" shall be defined as spouse, child, parent, sibling, grandparent, or person living in the same household as the employee, and who clearly has stood in the same relationship to the employee as a spouse, child, or parent although not related to the employee by law, **any person for whom the bargaining unit member is the Medical Power of Attorney, and any person for whom the bargaining unit member is a Legal Guardian appointed by a court of law.**
 - b. Absence due to illness, injury, or death, of members of family not listed above. Absence shall be granted up to but not to exceed five (5) days in any one school year. Family in this category include son-in-law, daughter-in-

law, parent-in-law, grandparent-in-law, grandchild, brother-in-law, sister-in-law, aunt, and uncle.

- c. **Members of the family not listed above – Absence shall be granted up to but not to exceed three (3) days in any one school year for the death of the following family member: cousin; niece; nephew; or unique family-like circumstances, with prior approval. Sick leave shall not be advanced for this purpose.**
- d. **Personal illness, pregnancy [from the birth of child may use up to six (6) weeks of sick leave for a non-cesarean childbirth, or up to eight (8) weeks of sick leave for a cesarean birth; these sick leave periods may be extended pending medical documentation], to care for his/her newborn child up to 6 weeks of age, injury or exposure to contagious disease.**

G. Sick Leave Pool

1. Definition

~~If an employee is currently absent for thirty (30) consecutive days or more due to an accident, catastrophic illness or long term illness of the employee, his/her spouse, or minor child, and has exhausted all of his/her accumulated sick leave, the employee may apply to use the sick leave pool (Attachment 3) and another employee may donate up to five (5) days (Attachment 4) of his/her accumulated sick leave to the absent employee. The requirement of thirty (30) consecutive days absence may be waived in extraordinary circumstances at the discretion of the Superintendent/Designee.~~

2. Day Limitation

~~No employee may receive more than an aggregate of thirty (30) donated sick leave days in any one school year. This thirty (30) day limit may be waived in extraordinary circumstances at the discretion of the Superintendent/Designee.~~

3. Donation

- a. ~~Donation of sick days shall be initiated by the employee on a form found as Attachment 4, no later than the pay period within which the sick leave of the absent employee is exhausted.~~
- b. ~~Donated sick leave shall be added to the accumulated sick leave of the absent employee and deducted from the donating employee (Attachment 4).~~
- c. ~~Donated sick leave shall not be considered as sick leave used for purposes of merit incentive for attendance payments.~~

4. Eligibility

Upon request for sick days donation, the Superintendent/Designee shall meet with the Organization President to discuss eligibility of the claim on the employee's behalf. The Superintendent/Designee may request a doctor's certificate verifying eligibility. The decision to grant use of the Sick Leave Pool is made by the Superintendent.

5. If the Superintendent and Organization President are not in agreement as to whether use of the Sick Leave Pool shall be granted, either the Superintendent or Organization President may decide that the specific situation will be decided by the Sick Leave Pool Committee. The Sick Leave Pool Committee is comprised of two (2) administrators appointed by the Superintendent, two (2) employees appointed by the Organization President, and one (1) Board member appointed by the Board. The decision of this Committee is made by majority vote and cannot be appealed.

A Sick Leave Bank will be established to provide paid sick leave for absences that exceed the amount of sick leave days accumulated by an active employee.

The following MBU shall be eligible to participate in the Sick Leave Bank:

1. For the 2024-2025 school year, any MBU who is in their third year or beyond may voluntarily donate one (1) accumulated, unused sick day to the Sick Leave Bank during the first nine weeks of the school year.
2. Bargaining unit members in their first or second year of employment with the district will be eligible to utilize the sick leave bank even though they are not yet required to donate a day.
3. Any member of the bargaining unit who is in his/her third year of employment, may voluntarily donate one (1) accumulated, unused sick day to the Sick Leave Bank during the first nine weeks of his or her third year.
4. For MBU who are in unpaid status during his/her year of eligibility to donate to the Sick Leave Bank, he/she may donate within the first nine (9) weeks after returning to paid status.

Bargaining unit members who seek to join or continue to participate in the Sick Leave Bank will be required to donate one (1) additional accumulated unused sick day each calendar year that ends in a zero (0).

Each MBU who chooses to donate shall notify the Board Treasurer by utilizing the employee "available forms" in the District's online portal. The Treasurer is then authorized to reduce by one day that employee's accumulated unused sick leave total.

A member must have contributed to the sick leave bank every year a contribution is required to be able to utilize this benefit. Exceptions can be made through collaboration of the Superintendent and BOSS President.

If MBU is absent due to: (1) catastrophic personal illness/injury, or (2) catastrophic illness/injury in the immediate family who are members of the same home, or (3) a situation where the BOSS President and the Superintendent agree that the employee is the primary health care giver of any immediate family member or person who stands in legal standing as such, who is suffering from a catastrophic personal illness/injury, and the member has exhausted all of his/her accumulated sick leave and personal days, the member could request to draw up to thirty (30) days per school year from the Sick Leave Bank. No certified staff member will be entitled to more than sixty (60) days of leave from the sick leave bank during their employment with BBHCSD unless the sick leave bank committee allows an exception by a majority vote of 75% or higher.

Maternity Leave is not a valid reason to utilize the sick leave bank unless medical issues covered by this Section arise from a recent birth.

All Sick Leave Bank days awarded to a requesting member must be approved by the Sick Leave Bank Committee, which consists of two Administrators, two Union Members appointed by the BOSS president, the Superintendent and the BOSS President. The decision will be final and binding and will not be grievable, and is not based on past decisions and/or will not become a precedent for future requests. Approval for a certified staff member's request to utilize the sick leave bank must be by a majority vote. A 3-3 tie will be considered a yes vote, and the member will be granted access to the sick leave bank.

When the Sick Leave Bank is reduced to 30 days or less due to utilization by members, a new cycle of donating one (1) accumulated, unused sick day to the Sick Leave Bank Committee may be approved by the sick leave bank committee. If the majority of the sick leave bank Committee votes to ask for additional donated days, the new cycle request for donated days will be enacted. The Treasurer will send out a staff notification via email that in order to remain as a member of the Sick Leave Bank, certified employees have thirty (30) days to submit a donation of no more than two days using form through the District's online portal. This paragraph only applies to bargaining unit members who are currently participating due to previously donating a day during the regular donation cycle.

All members must contribute one (1) day in the “new cycle” in order to be able to utilize this benefit. If the member has less than 30 days accumulated at the beginning of the school year and has previously donated a day in BBHCSD, then that member will be exempt from donating into the “new cycle,” but will still be eligible to participate in the Sick Leave Bank if they contribute in the next open enrollment window.

The Treasurer will notify the Superintendent and BOSS President when they must issue a request for MBUs to submit an additional day to remain active in the Sick Leave Bank.

SECTION 32. – COMMUNICABLE DISEASES

- A. The Board recognizes that communicable diseases are significant medical and social problems. The Board desires to protect the rights of individual students or employees who may be infected with communicable diseases, as well as protect non-infected students, staff and the public.
- B. The purpose of these procedures is to describe the method of handling the issues raised when an employee is potentially infectious with a communicable disease. A communicable disease is defined as a long-term disease capable of being transmitted from one person to another and that is dangerous to the public. Communicable diseases include, but are not limited to, tuberculosis, hepatitis and Acquired Immune Deficiency Syndrome, AIDS-related complex or the presence of Human Immunodeficiency Virus (HIV).
- C. There will be no mass testing to determine if an employee is infected with a communicable disease.
- D. Any employee who is diagnosed as having a communicable disease is required to report immediately ~~such diagnosis~~ **the diagnosis of having a communicable disease** to the Superintendent/Designee, **but he/she is not required to share the disease diagnosis unless required by law to do so, or unless required to address health and safety concerns in the building.**
- E. All employees shall be required to carry out their normal duties and responsibilities to an infected student or work with an infected employee where the determination has been made **by the employee’s or student’s physician that it is safe** to permit the infected individual to remain in the school setting.
- F. Decisions about each employee with a communicable disease are to be made on a case-by-case basis.
- G. When there is reason to believe that an employee has a communicable disease, then he/she is required to submit to a medical evaluation **his or her own physician**, by a public health physician and/or a physician or medical facility selected by the Board, at Board expense. “Reason to believe” shall be defined as:

1. The employee discloses his/her diagnosis;
 2. Knowledge that a member of the employee's household has a communicable disease;
 3. Evidence of impairment in job performance;
 4. Other information brought to the attention of the Board. Said information shall promptly be brought to the attention of the employee.
- H. If there is reason to believe that an employee has a communicable disease, he/she will be permitted to remain in his/her assignment or placed in an alternate assignment with no loss in salary, benefits or other emoluments.
- ~~I. When there is reason to believe that an employee has a communicable disease, an evaluation team shall convene within seven (7) calendar days of the employee/student identification.~~
- ~~1. The evaluation team shall be comprised of: the employee's physician, the school physician and a physician specializing in infectious diseases.~~
 - ~~2. The school physician shall be chairperson of the evaluation team.~~
- ~~J. The evaluation team shall review the employee's diagnosis, treatment and prognosis and shall submit a written report of its findings and determinations to the Superintendent/Designee within five (5) calendar days from when the evaluation team convened.~~
- K. The Superintendent/Designee will make a decision based on medical information concerning an employee's status/assignment within two (2) calendar days after receiving the report from **the evaluation team the member's personal physician or from the physician completing the medical evaluation.** An employee may be (1) kept in his/her original assignment, (2) placed in a different assignment with no loss of salary, benefits or other emoluments, (3) requested to utilize sick leave and would be entitled to unpaid leave of absence for up to two [2] years after paid sick leave has expired, (4) entitled to apply for disability retirement benefits under the State Employment Retirement System, or (5) placed on a leave of absence under Ohio Revised Code 3319.13. An employee shall not be terminated or otherwise separated from employment due to having been diagnosed as having a communicable disease.
- L. Information about the identity and condition of an employee infected with a communicable disease shall not be disclosed ~~by the evaluation team or~~ by the Superintendent/Designee to anyone other than the members of the Board, administrators in the buildings in which the employee is assigned, **teachers or the parents of students who may have been exposed,** school nurse and any other persons to whom disclosure is recommended by **the diagnosing physician the evaluation team.** **All persons who receive the information will be required to observe complete confidentiality as to such information.**

- M. ~~The evaluation team shall maintain an active role in monitoring the employee's medical condition.~~ The employee's physician shall work with the employee regarding any change in health status and shall notify the ~~school physician~~ **Superintendent** of any change. If any new information is brought to the attention of the ~~school physician~~ **Superintendent**, the procedures outlined above shall be followed.
- N. Those employees ~~to whom disclosure is recommended by the evaluation team~~ **who have come in contact with infected students** shall be notified of the identity and other relevant information regarding students identified as having a communicable disease. Employees will observe complete confidentiality as to such information.
- O. Employees who may be required to clean up body fluids shall be provided appropriate protective covering and adequate training.
- P. The administration of student medication shall be in accordance with the Ohio Revised Code and its regulations. The performance of non-medical procedures, such as bandaging cuts/abrasions and gastrostomy tube feedings may be required of some employees provided that the employees receive the necessary instruction, training, and equipment. The Board shall indemnify employees in the good faith exercise of these functions.
- Q. The Administration will implement and enforce Board policies and the Ohio Revised Code in dealing with student communicable diseases.
- R. **Nothing in this section shall be construed to waive physician-patient privilege provided by ORC 2317.02.**

SECTION 34. – TOBACCO-FREE ENVIRONMENT

- A. The use of tobacco inside school buildings, District offices, non-instructional facilities, Board-owned vehicles, and anywhere on school property (except in personal vehicles) is prohibited.
- B. The "use of tobacco" shall mean all use of tobacco, including a cigarette, cigar, pipe, snuff, **vape**, or any other matter or substances that contain tobacco **and/or nicotine**.
- C. The C.A.P.A. Coordinator shall assist in providing smoking cessation workshops and information on alternative support systems for smoking cessation.

SECTION 5. – FAIR SHARE FEE

- A. **[Note: re-lettered throughout]Any provisions of this section that were declared unconstitutional by the U.S. Supreme Court in Janus v. American Federation of State, County, and Municipal Employees, Council 31, shall no longer apply, unless or until the Janus decision is overturned or modified by future Supreme Court rulings and/or changes in state or federal law. All other provisions of this Article which are**

unaffected by the scope of the Janus v. American Federation of State, County, and Municipal Employees Council 31, shall remain in full force and effect.

- B. The Board agrees to automatic payroll deduction, as a condition of employment, of an amount equal to the dues of the United Education Profession (the Organization, UniServ, N.E.O.E.A., O.E.A., N.E.A.) from the pay of all employees who elect not to become members of the United Education Profession (UEP), or who elect not to remain members.
- C. The Board Treasurer, upon notification from the Organization Treasurer that a member has terminated membership, shall commence the check-off of the fair share fee with respect to the former member, and the amount of the fee yet to be deducted shall be the annual membership dues less the amount previously paid through payroll deduction.
- D. Payroll deduction of such fair share fees shall begin with the second paycheck in February.
- E. Dues rates and fair share fee rates shall be transmitted by the Organization to the Board's Treasurer for the purpose of determining amounts to be payroll deducted, and the Board agrees to promptly transmit all amounts deducted to the Organization.
- F. The Board's Treasurer shall inform the Organization Treasurer when there is a newly-hired employee after the school year begins within five (5) calendar days of that employee being hired. If that employee elects not to join the Organization, the Organization Treasurer shall inform the Board's Treasurer of that within thirty (30) calendar days of that employee's date of hire and shall also inform the Board's Treasurer as to that employee's annual fair share fee. Payroll deductions, in substantially equal amounts, shall commence on the first paydate after the later of sixty (60) calendar days of employment or the second paycheck in February.
- G. The Board agrees to provide the Organization Treasurer with an initial list of names of employees for whom such deductions are being made and the amount deducted for each. The Organization will be notified of any changes in the initial list.
- H. Upon timely demand, non-members may appeal to the O.E.A. the payment of the fair share fee pursuant to the internal procedure adopted by the O.E.A. or such non-members may submit such appeals as provided by law.
- I. Nevertheless, the amount to be deducted from the pay of all non-Organization members shall be the full dues of the UEP unless the Organization Treasurer notifies the Board Treasurer to the contrary, and such deductions shall continue through the remaining number of payroll periods over which Organization membership dues are deducted.
- J. The above fair share fee provision shall be an exclusive right of the Organization, not granted to any other organization seeking to represent employees in the bargaining unit represented by the Organization.
- K. The Organization agrees to indemnify, defend, and hold the Board and Administration, including each individual Board member, harmless for any cost or liability incurred as a

result of the implementation and enforcement of this provision. The Organization reserves the right to designate the attorneys for the purpose of responding to any claims, demands, suits or other forms of action hereunder. The Board shall give the Organization written notice of any claim or demand arising out of or in any way related to the implementation of this provision within ten (10) days after receipt of such demand or claim. The Board will cooperate with the Organization at all levels of any proceedings.

~~L. Any provisions of this section that were declared unconstitutional by the U.S. Supreme Court in Janus v. American Federation of State, County, and Municipal Employees, Council 31, shall no longer apply, unless or until the Janus decision is overturned or modified by future Supreme Court rulings and/or changes in state or federal law. All other provisions of this Article which are unaffected by the scope of the Janus v. American Federation of State, County, and Municipal Employees Council 31, shall remain in full force and effect.~~

Section 29, Transportation (remove challenge runs)

B. Definitions

1. Run – A run is picking up and dropping off a group of students. Presently there are A.M. runs, P.M. runs, Mid-day runs, ~~and Challenge runs~~. For purposes of clarification, a run does not include special transportation for an individual student.

3. Mid-day routes ~~or Challenge runs~~ shall also be selected by classification seniority, at the same time the selection process above is occurring, starting with the Bus Driver with the most classification seniority. These routes/runs will become part of the Bus Driver's regular daily schedule.

~~d. Fifteen (15) minutes shall be guaranteed for a Challenge run.~~

d. Classification seniority will prevail (driver with most classification seniority first) in choosing regular Bus Drivers as substitutes on Mid-day ~~and Challenge runs~~ when possible. A list of regular daily Bus Drivers wanting to substitute on runs will be posted, and only those Bus Drivers will be called. ~~Any open Challenge run will be filled by classification seniority from the regular Bus Drivers at that school.~~

SECTION 45. – ORGANIZATION DUES DEDUCTIONS

- A. The Organization shall have the sole and exclusive privilege of payroll deductions for its UEP dues: (O.E.A., N.E.O.E.A., .N.E.A., B.O.S.S. and UniServ).
1. On or before September 1st of each school year the Organization Treasurer shall provide the Board Treasurer with a list of all Organization members and the total amount of dues to be deducted.
 2. Dues deductions shall be on a continuing basis and without cost to the employee or the Organization. Each employee shall submit a written dues deduction authorization form. Thereafter, only new employees shall submit a written dues deduction authorization form. For all school years following the submission of the dues deduction authorization, dues shall continue without the need to resubmit additional authorization forms, unless between August 15th and **August 31st** ~~September 15th~~ the employee discontinues membership by providing written notice to the Organization Treasurer, **BOSS President** and the Board Treasurer.
 3. Dues deductions shall be in essentially nineteen (19) equal installments beginning with the second pay in September and continuing with each paycheck through June. Beginning in October, dues shall only be taken out twice per month. The Organization Treasurer shall inform the Board Treasurer of the total amount to be deducted for each employee employed after September 1st. A single check shall be issued to the Organization Treasurer at the end of each month.
 4. Each employee employed after September 1st of any school year who elects payroll deduction shall have his/her dues deducted in even installments from the remaining paychecks through the last paycheck in June. The Organization Treasurer shall inform the Board Treasurer of the total amount to be deducted for each employee employed after September 1st.
 5. The Board Treasurer shall submit a check in the total amount of employee deductions per month to the Organization Treasurer no later than three (3) days following the issuance of payroll checks. Such check will be made payable to the Organization.
 6. The Organization Treasurer shall be provided with a list of deductions (stating the employee's name and the amount deducted) for each month collected.
 7. The Organization agrees to indemnify, defend, and hold the Board and Administration, including each individual Board member, harmless for any cost or liability incurred as a result of the implementation and enforcement of Section A. 2. (above). The Organization reserves the right to designate the attorneys for the purpose of responding to any claims, demands, suits or other forms of action hereunder. The Board shall give the Organization written notice of any claim or demand arising out of or in any way related to the implementation of Section A. 2. (above) within ten (10) working days after receipt of such demand or claim. The Board will cooperate with the Organization at all levels of any proceedings.

B. Payroll deductions for O.E.A. Fund for Children and Public Education

1. Each employee may elect to contribute through payroll deductions to political organizations and parties and nonpartisan issues in accordance with Ohio Revised Code 3313.262.
2. Deductions shall be in ten (10) equal installments and shall begin within two (2) pay periods following the delivery of the written authorization forms from the Organization Treasurer to the Board Treasurer.

Section 4 – Organization Rights

E. Meetings

1. The Organization shall have the privilege, without charge, of official membership meetings on school property within limits of the Board-approved building use regulations.
2. Second shift employees who are members of the Organization shall be permitted to attend all Organization meetings; however, one Custodian I or Custodian II must be on duty at any building that is being used for a night activity. An employee must notify his/her supervisor upon leaving to attend the meeting and upon returning to the building after the meeting.
3. In a building where no activity is occurring, the supervisor (with permission from the building principal) may secure the building and all employees may attend the meeting.
4. In all instances, an employee must notify his/her principal that he/she will be attending the meeting. An employee who attends the meeting must complete his/her normal daily work duties during the work day in which the meeting was attended. If the employee must remain after the shift is over in order to complete his/her duties, that work shall be on the employee's own time at his/her regular rate of pay (straight time).
5. **BOSS will be given at least one hour during one of the first two workdays of the school calendar to meet with BOSS members. Preferably, the meeting time will occur immediately before or after all staff convocation.**

New Section 4.I.

New Hires

The Assist. Superintendent shall inform the BOSS when there is a newly-hired bargaining unit member within five (5) work days of the member being hired. If a

bargaining unit member's start date is prior to the recommendation to the Board to hire, the Assist. Superintendent will inform the BOSS president of the intention to recommend the hiring of a bargaining unit member.

BOSS will be given at least one (1) hour of time that does not impact the student day each semester to meet with newly hired bargaining unit members.

For all Sections (Education Assistants, Special Education Assistants, Health Aides, and Media Assistants) that include language on the ESEA endorsement, revise as follows:

1. Each (Education Assistants, Special Education Assistants, Health Aides, and Media Assistants) must have an educational aide permit with an ESEA Qualified Endorsement. New hires must earn such endorsement within the first sixty (60) days of employment.

SECTION 12. – PERSONNEL FILES

- A. The Board agrees to maintain one (1) official personnel file which will be located at the Board of Education office building or available electronically.
- B. All materials placed in the employee's personnel file after initial employment, other than confidential letters of reference and any medical documentation, shall be available for inspection by that employee during regular business hours of the Board of Education office if in paper form, or available electronically.
- C. If possible, said file inspection shall take place within one (1) calendar day of the request to the Superintendent/Designee, but no later than five (5) calendar days (excluding Saturdays, Sundays, and holidays) of the request unless mutually extended by the Superintendent/Designee and the employee.
- D. Any employee who elects to review material in his/her file may be accompanied by a representative of his/her choice. An employee will be notified about any public record request submitted by a third party (non-supervisory employees or others outside the District) including the name of the person(s) seeking to review the employee's personnel file. The employee will be notified at least three (3) working days prior to the file review unless the Board is legally obligated to make the file accessible within a shorter timeframe. In that event, the employee will be notified as soon as practicable prior to the file review.
- E. All material placed in an employee's personnel file shall be dated.
- F. The initialing and/or signing of any material by the employee, including any and all observation and evaluation forms, is merely an acknowledgment of having seen the material and does not necessarily indicate agreement or disagreement.
- G. No material shall be placed in the employee's file that comes from an anonymous source.

- H. Any adverse material and/or parental complaints shall not become a part of the official personnel file or be used in disciplinary decisions unless shared with the employee and signed and dated by the employee or, where the employee is not available, the employee will be sent a copy by certified mail to the employee's home address. Unless the employee is not available, such materials/complaints will be verbally discussed with the employee before being placed in the employee's official personnel file. **The signature does not indicate that the member is in agreement with the complaint. If a member refuses to sign, that shall be noted by the administrator; refusal does not prevent a material and/or complaint from being placed in the file.**
- I. Each employee shall be provided with copies of any adverse materials within ten (10) calendar days after receipt and before placement in the file. Any adverse materials shall be placed in the employee's file within fifteen (15) working days of receipt. The employee shall have the opportunity to reply in writing to the adverse material within ten (10) days after receipt of a copy of such material and the reply shall be placed in his/her file along with the adverse material. Any adverse material, other than those related to situations involving students **or unless required by law to stay in the personnel file**, shall be removed after ~~seven (7)~~ **five (5)** years at the employee's request if the actions or behaviors noted in the adverse material have not recurred within the ~~seven (7)~~ **five (5)** year period. Any adverse materials related to interactions or conduct with students will remain in the employee's personnel file. Unsubstantiated complaints will be in a separate investigative file.
- J. In addition to the one official personnel file ~~located at the Board of Education office building~~, a building administrator and/or supervisor may maintain a working file that contains documentation relevant to an employee's performance. By June 30th of each school year in which the employee is formally evaluated, the information contained in the working file will either be placed in the official personnel file or expunged. This does not preclude a building administrator and/or supervisor from maintaining an extra copy of documents placed in the employee's official personnel file.
- K. Complaint Procedure
1. Complaint Definition

A complaint is a written or verbal concern expressed to an administrator and/or supervisor regarding a situation that occurred.
 2. Complaint Procedure

Complaints against any employee shall be handled through the established chain of command whenever possible. The complaint shall be referred first to the employee; if unresolved, then to the employee's supervisor. Except in the case of alleged criminal activity, if the complainant refuses to contact the employee, the person receiving the complaint shall inform the employee of the complaint within a reasonable amount of time. Anonymous complaints/reports shall not serve as the basis of any personnel decisions.

Section 13 – Vacancies, Transfers, and Promotions

A. New Employment (employees new to the District)

1. Newly-hired employees shall serve a one hundred twenty (120) work day probationary period. It shall be the duty of the Superintendent/Designee during the probationary period of each employee in the classified service to investigate thoroughly the efficiency, conduct, and integrity of such employee and to determine whether or not he/she shall be retained. The decision of whether to retain a probationary employee is within the discretion of the Superintendent/Designee and is not grievable.
2. A newly-hired employee shall have no seniority during his/her probationary period. Notwithstanding any other provisions of this Contract, during the probationary period, the newly-hired employee will be eligible to apply for vacant positions but will not be entitled to the “first opportunity” for a lateral move. Probationary employees may substitute for another employee in a higher classification if the supervisor believes the probationary employee is appropriately qualified. In addition to the exceptions stated above, probationary employees shall be covered by all Sections of the Agreement, with the exception of Section 11 (Discipline), Section 14 (Layoff) and Section 15 (Evaluations).
3. An employee retained beyond his/her probationary period shall have his/her District seniority computed as of his/her Board effective date of hire and classification seniority computed as of his/her date of entry into the classification. A newly-hired regular employee may be allowed credit for job-related experience up to and including the third step. Evaluation and approval of this credit shall be made by the Superintendent/Designee. ~~Credit for job-related experience will be prospective only and will go into effect the date the employee submits a written request for credit. The Superintendent/Designee shall notify the Treasurer’s office of any credit for job-related experience.~~

SECTION 16. – SCHEDULE AND WORK HOURS

A. Work Schedule

The regular work schedule shall be Monday through Friday. The beginning and ending time of the employee’s day will be determined by the employee’s supervisor ~~within the first four (4) weeks of the first student school day for the 2022-2023 school year, and thereafter~~ within the first three (3) weeks **of the first student school day**. In no way shall an employee’s total daily/weekly hours of employment be reduced. If it is determined that an employee’s schedule or shift will be changed, notification must be given to the employee prior to the beginning of a new school year. Notwithstanding the above, the schedule for

positions that are driven by a student's individual education plan, 504 plan, or emergencies resulting in unanticipated student needs may be changed as the need arises, with two (2) weeks notice to the affected employee.

L. Call-In: Absences

1. An day shift employee shall call or email his/her immediate supervisor/designee and report in the district's electronic reporting system each day of absence prior to his/her work schedule.
2. If possible, a night shift employee shall call in by 10:00 A.M. of each day the employee is going to be absent.

Section 22, Custodial

G. ~~For 2022-2023 school year only, Superintendent may assign within the Head Custodian classification at her discretion; two head custodians at each building, day and night.~~

Section 29, Transportation

C. Use of Vans

3. A van(s) shall not be used for any field trip in order to eliminate the use of a bus. If more than one (1) van is needed for a field trip, a bus will be used. However, if there is at least a three (3) hour staggered departure/arrival time, more than one (1) van may be used.
4. A van can only be used if there are seven (7) nine (9) or fewer passengers.
5. The District shall comply with all State regulations for persons driving a van.

SECTION 36. – HOLIDAYS

A. Any employee who works on a twelve (12) month basis shall receive the following paid holidays:

1. New Years Day and one additional day*
Martin Luther King Day
President's Day
Good Friday (only if there is no school)
Memorial Day
Juneteenth
Independence Day

Labor Day
Thanksgiving Day and the Friday following
Christmas Day and one additional day*

*The days to be taken as holidays will be designated by the Superintendent/Designee.

2. Twelve (12) month employees who work fewer than five (5) days a week will only receive holiday pay for those days on which they are otherwise scheduled to work.
- B. Subject to the school calendar, should a holiday fall on a Saturday, it shall be celebrated on the work day preceding the weekend. Should a holiday fall on a Sunday, it shall be celebrated on the workday following the weekend.
- C. Any employee who works on a school year basis and fewer than twelve (12) months shall receive the following paid holidays if he/she works 5 days a week. Any employee who works on a school year basis fewer than twelve (12) months, and fewer than five (5) days a week shall receive the following paid holidays if that holiday falls on the day of the week that the employee is normally scheduled to work.

New Years Day
Martin Luther King Day
President's Day
Good Friday (only if there is no school)
Memorial Day
Labor Day
Thanksgiving Day and the Friday following
Christmas Day

- D. Should a holiday fall on a Saturday or Sunday all employees shall be paid for that holiday. When a holiday falls on a normal weekday an employee must be regularly scheduled to work the same day as the holiday in order to be paid.
- E. Religious Holidays: A maximum of two (2) days with pay may be granted during any one (1) year for religious holidays which are not recognized in the school calendar and which prohibit the employee from working on those days. Religious holidays are not deducted from sick leave or personal leave.
- F. Wednesday Before Thanksgiving
1. Each employee who is scheduled to work on the Wednesday before Thanksgiving may have that day off if he/she puts in the hours scheduled for that Wednesday before Thanksgiving between the beginning of the school year and the Wednesday before Thanksgiving.
 2. These make-up hours must be approved in advance by the immediate supervisor

and a log kept by the employee and initialed by both the immediate supervisor and the employee. The hour calculation shall be based on straight time hours and these make-up hours must be worked in the building(s) where the employee normally works.